

SECTION - K

Rules of Nomination and Settlement of Claims in respect of Deceased Customers and Missing Persons

Part 1 - Introduction

Branches receive requests for settlement of claims from the nominees or legal heirs in respect of deceased customers as well as persons reported missing. The intent of this policy is to lay down clear guidelines with respect to claim settlement of deceased depositors and missing persons both in respect of deposits and lockers.

Part 2 – Guidance to the customers on advantages of nomination facility / survivorship mandate.

2.1 Nomination facility

- Nomination Facility is an ideal tool to mitigate hardships of common persons in settlement of claims in the event of death of the account holder.
- Nomination facility simplifies the procedure for settlement of claims of deceased depositors as banks get a valid discharge by making payment of the balance outstanding in a depositor's account at the time of his death or delivering contents of locker or articles kept in safe custody to the nominee.
- Nomination is optional for bank customers. It is therefore necessary that nomination facility is popularized and customers are made aware of its advantages while opening a deposit account or opting for the lockers.
- Member Banks should inform account holder about the availability of nomination as a voluntary facility and recommend his/her availing the option. Nomination facility, if availed, would ensure smooth settlement of claim to the nominee.
- It should also be made clear to the depositor(s) that nomination is introduced solely for the purpose of simplifying the procedure for settlement of claims of deceased depositors and nomination facility does not take away the rights of legal heirs on the estate of the deceased. The nominee would be receiving the stock from the bank as a trustee of the legal heirs.

General Guidelines on Nomination

- a. Nomination facility is intended only for individuals including a sole proprietary concern.
- b. There cannot be more than one nominee in respect of single/joint deposit account.
- c. Banks may allow variation/cancellation of a subsisting nomination by all the surviving depositor(s) acting together. This is also applicable to deposits having operating instructions "Either or Survivor".
- d. It may be noted that in the case of a joint deposit account the nominee's right arises only after the death of all the depositors.

2.2 Survivorship Mandate

- ❖ A joint account opened as "Either or Survivor" or "Anyone or Survivors" or "Former or Survivor" or "Latter or Survivor" will permit the surviving account holder(s) to have unimpeded access to the credit balance in the account for withdrawal if one of the co-account holders dies.

- ❖ If the mandate of survivorship is given / provided, the survivor(s) can give a valid discharge to the bank in the case of "Either or Survivor" / "Anyone or Survivors" and "Former or Survivor" / "Latter or Survivor" joint accounts.
- ❖ In short, payment to survivor(s) can be made in the normal course subject to the only rider that there is no order from a competent court restraining the bank from making such payment.

2.3 Customer Guidance and Publicity

All customer interfacing staff members shall sensitize customers on the advantages of availing Nomination facility / survivorship mandates in jointly held accounts. The website of the Bank shall display the salient points of this Policy on settlement of claims in respect of deceased and missing customers. The proforma of the claim application forms along with the list of documents required to process the claims, shall be suitably displayed on the website.

Part 3 – Settlement of Claims in Deposit Accounts of Deceased Depositor

3.1. Accounts with nominee(s)/ survivorship clause

3.1.1. A deposit account where a depositor had made nomination in terms of the provisions of the Banking Regulation Act, 1949 or where the account was opened with survivorship clause, the payment of the outstanding balance upon the death of the depositor(s) to the nominee(s)/ survivor(s) shall be considered a valid discharge of a bank's liability, provided:

- (i) the bank has exercised due care and caution in establishing the identity of the nominee(s)/ survivor(s) and the deceased status of the account holder(s) by obtaining appropriate documentary evidence (physical or equivalent e-document);
- (ii) (there is no order from the competent court in the knowledge of the bank, as on the date of settlement/ payment, restraining the nominee(s)/ survivor(s) from receiving or the bank from making the payment from the account of the deceased depositor(s); and
- (iii) it has been made clear in writing to the nominee(s)/ survivor(s) that they would be receiving the payment from the bank as a trustee of the legal heirs of the deceased depositor(s), i.e., such payment to them shall not affect the right or claim which any person may have against the nominee(s)/ survivor(s) to the extent of the payment made to them.

In the case of a joint deposit account with or without survivorship clause, the nominee's right arises only after the death of all the depositors.

3.1.2. Payment made to the nominee(s)/ survivor(s), subject to the foregoing conditions, shall constitute a full and valid discharge of bank's liability. Therefore, in such cases, while making payment to the nominee(s)/ survivor(s) of the deceased depositor(s), the bank shall not insist on production of legal documents such as Succession Certificate, Letter of Administration, Probate of Will, etc., or seek any bond of indemnity/ surety from the nominee(s)/ survivor(s)/ third-party, irrespective of the amount standing to the credit of the deceased account holder(s).

Documents to be obtained from Nominee/Survivor :-

- I. Claim form ([Annex I-A](#)) duly signed by the nominee(s)/ survivor(s);

- II. Death certificate of the deceased depositor(s); and
- III. Officially Valid Document of the nominee/ survivor towards verifying her/ his identity and address.

3.2. Accounts without nominee/ survivorship clause

3.2.1. Simplified Procedure for settlement of claims

In order to minimize inconvenience and avoid undue hardship to the legal heir(s)/ claimant(s), Bank shall adopt a simplified procedure for settlement of claims in respect of deposit accounts where the aggregate amount payable, including accrued interest, as on the date of the application is less than the **threshold limit**.

A) Claims up to Threshold Limit of ₹15 lakh

- I. a deceased depositor(s) had not made any nomination or in case of a joint account, the account was without nominee/ survivorship clause,
- II. there is no Will left behind by the deceased depositor(s),
- III. there is no contesting claim, and
- IV. there is no order from a competent court in the knowledge of the bank, restraining the claimant(s) from receiving nor the bank from making the payment.

Documents to be obtained :-

- i. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- ii. Death certificate of the deceased depositor(s);
- iii. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;
- iv. Bond of indemnity ([Annex I-C](#)) signed by the claimant(s);
- v. Letter of disclaimer/ no objection ([Annex I-D](#)) from non-claimant legal heir(s), and
- vi. Legal Heir Certificate issued by a competent authority **OR** Declaration ([Annex I-E](#)) regarding the legal heir(s) of the deceased depositor(s) by an independent person who is well known to the family of the deceased, is not a party to the claim and is acceptable to the bank.
- vii. No bond of surety from a third party in case of claims up to the threshold limit.

B) Claims Above Threshold Limit of ₹15 lakh

In cases where claim amount is above the threshold limit of ₹15 lakh

Documents to be obtained:-

a) In case of Succession Certificate

- I. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- II. Death certificate of the deceased depositor(s);
- III. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;

OR

b) Legal Heir Certificate issued by a competent authority

- I. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- II. Death certificate of the deceased depositor(s);
- III. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;
- IV. Bond of indemnity ([Annex I-C](#)) signed by the claimant(s);
- V. Letter of disclaimer/ no objection ([Annex I-D](#)) from non-claimant legal heir(s)

OR

c) Affidavit ([Annex I-E](#)) sworn before a Notary Public/ Judge/ Judicial Magistrate regarding the legal heir(s) of the deceased depositor, by an independent person who is well known to the family of the deceased, is not a party to the claim and is acceptable to the bank.

- I. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- II. Death certificate of the deceased depositor(s);
- III. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;
- IV. Bond of indemnity ([Annex I-C](#)) signed by the claimant(s);
- V. Letter of disclaimer/ no objection ([Annex I-D](#)) from non-claimant legal heir(s)

3.3 Settlement of Claims not falling under the Simplified Procedure

(a) Claims involving ‘Will’ without any dispute

The bank shall settle claims involving ‘Will’ left behind by a deceased depositor on the basis of Probate of Will/ Letter of Administration, as applicable,

Documents to be obtained :-

- I. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- II. Death certificate of the deceased depositor(s);
- III. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;

In cases where a person other than a legal heir is named as a beneficiary in the Will, applicable documents shall also be obtained from her/ him.

However, the bank is free to exercise discretion (up to an amount of Rs. 15 Lakh) and act as per ‘Will’ of the deceased without requiring production of the probate of such Will, provided the same is not inconsistent with applicable laws, there is no dispute regarding the Will amongst the legal heir(s) and/ or beneficiaries named in the Will and the bank is otherwise satisfied as to the genuineness of the Will.

In such case the bank shall obtain the following documents:

- I. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- II. Death certificate of the deceased depositor(s);
- III. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;
- IV. Bond of indemnity ([Annex I-C](#)) signed by the claimant(s);
- V. Letter of disclaimer/ no objection ([Annex I-D](#)) from non-claimant legal heir(s)

(b) Cases involving contesting claims/ dispute

In case of contesting claims or dispute amongst the legal heir(s) and/ or the beneficiaries named in the Will of the deceased depositor, the bank shall settle claims on the basis of Probate of Will or Letter of Administration or Succession Certificate or Court order/ decree, as applicable,

Documents to be obtained :-

- I. Claim form ([Annex I-B](#)) duly filled in and signed by the claimant(s) other than those who have signed the letter of disclaimer/ no objection;
- II. Death certificate of the deceased depositor(s);
- III. Officially Valid Document of the claimant(s) towards verifying his/ her identity and address;

Further, where there is an order from a Court restraining the bank from making the payment, the claim shall not be entertained during the period the order is in force. The settlement of claim shall be considered based on subsequent Court order to that effect.

(c) No bond of surety shall be insisted from a third party in cases falling under either paragraph 3.3(a) or 3.3(b).

3.4 Treatment of credits in the name of a deceased depositor post settlement

Post settlement of the deposit account(s), in case any credit is received in the name of a deceased depositor, the bank shall return the same to the remitter with the remark 'Account holder deceased' and intimate the nominee(s)/ survivor(s)/ legal heir(s).

3.5 Premature termination of term deposit accounts in case of depositor's death

Bank shall incorporate a clause in the account opening form itself to the effect that in the event of death of the depositor, premature termination of term deposits would be allowed without any penal charge, even if the deposit is within the lock-in-period.

Premature termination of term deposits opened jointly, with or without survivorship clause, shall require the consent of the surviving depositors and the legal heir(s) of the deceased joint holder, in case of death of one of the depositors.

However, in case of joint accounts with survivorship clause, if a specific mandate is furnished by all the depositors jointly to the bank, either at the time of placing the term deposit or anytime subsequently during the tenure of the deposit, then premature withdrawal option shall be allowed to the survivors on the death of any of the depositors, without seeking the concurrence of the legal heir(s) of the deceased joint deposit holder.

3.6 Continuation/ Closure of term deposit accounts in case of depositor's death

In the event of death of a depositor :

If the survivor or the claimant wishes to continue the deposit, the Bank shall permit to continue the said deposit at contractual rate till the date of maturity.

If the survivor or claimant opts to close the deposit, the Bank shall pay interest at the applicable rate for the period the deposit remained with the Bank, without levying any premature withdrawal penalty..

4. Settlement of claims in respect of missing persons

The nominee(s)/ legal heir(s) of a missing person shall be required to get an order from the competent court under the provisions of Sections 110 or 111 of the Bharatiya Sakshya Adhiniyam, 2023.

The claim in respect of such missing person shall be settled as per the procedure applicable for settlement of claims in respect of a deceased customer. In such cases, a copy of the court order declaring the civil death of the account holder shall be obtained in lieu of the death certificate.

4.1 Adoption of simplified procedures to avoid inconvenience and undue hardship to the common person

4.1.1. Claims in respect of Missing Persons less than Rs.100,000/- including accrued interest

To avoid inconvenience and undue hardship to the common person where the aggregate amount payable, including accrued interest, as on the date of the application is less than ₹1 lakh

Documents to be obtained :-

- I. A copy of the First Information Report (FIR)
- II. A Non-traceable report issued by police authorities shall be obtained in lieu of death certificate **OR** an order from competent court declaring the civil death of the account holder for settling the claim.

4.1.2. If claim amount is Rs.100,000/- and above

- I. A copy of the court order declaring the civil death of the account holder for settling the claim shall be obtained.

5. Settlement of Claims in Safe Deposit Locker and Articles in Safe Custody by Deceased Customer

a) Claims with Nominee(s)/ Survivor(s)

- a) If a sole locker hirer nominates an individual(s) to receive the contents in the locker in case of her/ his death, bank shall give access of the locker to such nominee(s) with liberty to remove the contents of the locker.
- b) In case the locker was hired jointly with the instructions to operate it under joint signatures, and the locker hirers nominate any other individual(s), in the event of death of any of the locker hirers, the bank shall give access of the locker and the liberty to remove the contents jointly to the nominee(s) and the survivor(s).
- c) In case the locker was hired jointly with survivorship clause and the hirers instructed that the access of the locker should be given to "either or survivor", "anyone or survivor" or "former or survivor" or according to any other survivorship clause permissible under the provisions of the Banking Regulation Act, 1949, the bank shall follow the mandate in the event of death of one or more of the joint locker hirers.

In case of nominee is Minor

- The bank shall ensure that, the contents of locker, sought to be removed on behalf of the minor nominee, are handed over to the guardian whose details have been provided in the nomination form.
- If the details of the guardian have not been provided in the nomination form, the bank shall hand over the contents of the locker to a person who is, in law, competent to receive the contents of safe deposit locker on behalf of such minor.

Documents to be obtained :-

- i. Claim form ([Annex I-A](#)) duly signed by the nominee(s)/ survivor(s);
- ii. Death certificate of the safe deposit locker hirer(s); and
- iii. Officially Valid Document of the nominee/ survivor towards verifying her/ his identity and address.

5.1.1 Bank shall, however, ensure the following before giving access to the contents to the nominee(s)/ survivor(s):

- i. Exercise due care and caution in establishing the identity of the nominee(s)/ survivor(s) and deceased status of the locker hirer(s) by obtaining appropriate documentary evidence (physical or equivalent e-document);
- ii. There is no order or direction as on date from a Court/ Forum in the knowledge of the bank, restraining the nominee(s)/ survivor(s) from having access or the bank from giving access to the locker of the deceased hirer(s) and liberty to remove the contents of such locker; and
- iii. Make it clear to the nominee(s)/ survivor(s) that access and liberty to remove the contents of the locker is given to them only as a trustee of the legal heir(s) of the deceased locker hirer(s), i.e., such access and liberty to remove the contents given to them shall not affect the right or claim which any person may have against the nominee(s)/ survivor(s) to whom the access is given.

5.1.2 Procedure for Inventory and Handover of Locker Contents

- After receipt of the document and being satisfied to the genuineness of the claim, the bank shall correspond with the nominee(s)/ survivor(s) in writing and fix a date and time for making an inventory of the contents of the safe deposit locker.
- The same shall be undertaken in the presence of the nominee(s) and/or survivor(s) and/ or their authorised representatives, two independent witnesses (should not be employee or ex-employee of the bank), the safe deposit vault custodian and another employee of the bank not associated with locker operations, and recorded as per the inventory form given in [Annex I-F](#).
- The bank shall then hand over the possession of the contents of the locker to the nominee(s)/ survivor(s)/ the person competent to receive the contents on behalf of the minor, as the case may be, and obtain an acknowledgment ([Annex I-F](#)), that all the contents in the locker of the deceased hirer(s) have been removed and the locker is empty, and they have no objection to allotment of the locker to any other locker hirer as per norms of the bank.

Production of legal documents, viz., Succession Certificate, Letter of Administration, Probate of Will, etc., or Bond of indemnity from the nominee(s)/ survivor(s) shall not be required unless there is any discrepancy in nomination.

5.1.3 Procedure for Inventory and Return of Safe Custody Articles

Procedure, prescribed above, shall be followed mutatis mutandis for return of articles kept by the deceased customer in the safe custody of the bank. However, inventory form ([Annex I-G](#)) shall be used.

b) Cases without nominee/ survivorship clause

Settlement of claims falling under the simplified procedure

(a) In order to avoid inconvenience and undue hardship to the legal heir(s)/ claimant(s), bank shall adopt a simplified procedure for settlement of claims in safe deposit lockers provided there is no dispute amongst the legal heir(s)/ claimant(s) and

- (i) the deceased locker hirer(s) had not made any nomination, or
- (ii) the joint hirers had not given any mandate that the access may be given to one or more of the survivors by a clear survivorship clause, or
- (iii) there is no 'Will' left behind by the deceased locker hirer.

(b) In cases falling under the simplified procedure to settle the claim without obtaining any legal documents such as Succession Certificate, Letter of Administration, Court order, etc.

Documents to be obtained :-

- i. Claim form, as given in [Annex I-B](#), duly filled and signed by the claimant legal heir(s);
- ii. Death certificate of the safe deposit locker hirer(s);
- iii. Officially Valid Document of the claimant(s) towards verifying her/ his identity and address;
- iv. Letter of disclaimer/ no objection, as given in [Annex I-D](#), from non-claimant legal heir(s), if applicable; and
- v. Legal Heir Certificate issued by a competent authority or Affidavit, as given in [Annex I-E](#), sworn before a Notary Public/ Judge/ Judicial Magistrate regarding the legal heir(s) of the deceased locker hirer(s) by an independent person who is well known to the family of the deceased, is not a party to the claim and is acceptable to the bank.

Settlement of Claims not falling under the Simplified Procedure

(a) Claims involving 'Will' without any dispute

The bank shall settle claims involving 'Will' left behind by a deceased safe deposit locker hirer on the basis of Probate of Will/ Letter of Administration, as applicable, In cases where a person other than a legal heir is named as a beneficiary in the Will, applicable documents shall also be obtained from her/ him.

Documents to be obtained :-

- i. Claim form, as given in [Annex I-B](#), duly filled and signed by the claimant legal heir(s);
- ii. Death certificate of the safe deposit locker hirer(s);
- iii. Officially Valid Document of the claimant(s) towards verifying her/ his identity and address;

However, the bank may exercise discretion and act as per 'Will' of the deceased without requiring production of the probate of such Will, provided the same is not inconsistent with applicable laws, there is no dispute regarding the Will amongst the legal heir(s) and/ or beneficiaries named in the Will and the bank is otherwise satisfied as to the genuineness of the Will.

Documents to be obtained :-

- i. Claim form, as given in [Annex I-B](#), duly filled and signed by the claimant legal heir(s);
- ii. Death certificate of the safe deposit locker hirer(s);
- iii. Officially Valid Document of the claimant(s) towards verifying her/ his identity and address;
- iv. Letter of disclaimer/ no objection, as given in [Annex I-D](#), from non-claimant legal heir(s), if applicable; and
- v. Legal Heir Certificate issued by a competent authority or Affidavit, as given in [Annex I-E](#), sworn before 'a Notary Public/ Judge/ Judicial Magistrate regarding the legal heir(s) of the deceased locker hirer(s) by an independent person who is well known to the family of the deceased, is not a party to the claim and is acceptable to the bank.

(b) Cases involving contesting claims/ dispute

Cases involving dispute amongst the legal heir(s) and/ or beneficiaries named in the Will, as applicable, shall be settled based on Probate of Will or Succession Certificate or Letter of Administration or Court order/ decree, as the case may be.

Documents to be obtained :-

- i. Claim form, as given in [Annex I-B](#), duly filled and signed by the claimant legal heir(s);
- ii. Death certificate of the safe deposit locker hirer(s);
- iii. Officially Valid Document of the claimant(s) towards verifying her/ his identity and address;

Procedure for taking inventory of contents of safe deposit locker

- After receipt of the required documents and being satisfied to the genuineness of the claim, the bank shall correspond with the claimant(s) in writing and fix a date and time for making an inventory of the contents of the safe deposit ([Annex I-F](#)) in the presence of all claimant(s) or their duly authorised representatives, two independent witnesses (should not be employee or ex-employee of the bank), the safe deposit vault custodian and another employee of the bank not associated with locker operations.
- Valuation of the contents of the safe deposit locker shall be carried out by an independent valuer and recorded in the Bond of Indemnity as given in [Annex I-H](#).
- The claimant(s) or their duly authorised representative(s) may remove the contents of the locker subsequent to submission of the Bond of Indemnity.

- Bond of Indemnity shall not be required to be given in cases of claims settled on the basis of legal documents such as Probate of Will or Succession Certificate or Letter of Administration or Court order/decree, etc.

Procedure for Inventory and Return of Safe Custody Articles

- Procedure, as prescribed above, shall be followed mutatis mutandis for return of articles kept by the deceased customer in the safe custody of the bank.
- However, inventory form given in [Annex I-G](#) shall be used in such cases.

6. Operational and Compensation related aspects

6.1 Standardisation of procedure for submission of claims

- Bank must use the standardised forms for receiving the claims and other documents as per the formats provided in [Annex I-A](#) to [I-H](#).
- The standardised forms and other documents required for settlement of claims with respect to the deposit accounts/ safe deposit locker/ articles in safe custody kept by a deceased customer shall be made available in all the branches as well as on the bank's website for the convenience of the claimant(s). Further, a bank shall also display on its website, the list of documents to be submitted by a claimant and the procedure to be followed for settlement of claims in various scenarios.
- A claimant shall be allowed to lodge the claim at any of the branches against acknowledgment. In case all required documents for processing of the claim have been submitted by the claimant, the bank shall also issue a confirmation in this regard. However, in case of any pending or incomplete/ incorrect documents, the bank shall intimate the claimant about the list of such documents while acknowledging the receipt of claim. On subsequent submission of all the required documents, the bank shall issue a confirmation to the claimant that all required documents have been received for processing of the claim.
- Bank may provide the facility for online lodgement of such claims. Upon a claimant uploading the claim form along with the required documents, the bank shall send acknowledgement/ confirmation through appropriate channels and also make available the provision for online tracking of the status of the claim. In such cases, if the bank requires the claimant to produce original documents for submission/ verification, the same shall be allowed to be done at any of its branches.

7. Time limit for settlement of claims

7.1 Deposit Accounts

- Bank shall settle a claim in respect of deposit accounts of a deceased customer within a period not exceeding 15 calendar days from the date of receipt of all the required documents associated with the claim.

7.2 Safe Deposit Locker/Article in Safe Custody

- The bank shall settle claim in respect of safe deposit locker/article in safe custody within 15 calendar days of receipt of all the required documents, process the claim and communicate with the claimant(s) for fixing the date for making inventory of the locker/ articles in safe custody.

8. Compensation for delay in settlement of claims

8.1 Deposit Accounts

If any deposit related claim is not settled within the timeframe stipulated above, then the bank shall communicate the reasons for such delay to the claimant(s).

Further, in cases of delay attributable to the bank, compensation shall be paid by the bank in the form of interest, at a rate not less than the prevailing Bank Rate + 4% per annum, on the settlement amount due for the period of delay. The reference date for reckoning the amount due and the prevailing Bank Rate shall be the date of receipt of all required documents from the claimant.

8.2 Safe Deposit Locker/Article in Safe Custody

Claims related to safe deposit locker/ articles in safe custody, the bank shall be required to pay compensation to the claimant(s) at the rate of ₹5,000 for each day of delay, in cases where it doesn't adhere to the timeline prescribed in paragraph above.

9. Miscellaneous

9.1 Settlement of claims in respect of deposit accounts of a sole proprietary concern

Nomination facility is also available in respect of deposits held in the name of a sole proprietary concern. For settlement of claims in respect of such accounts as prescribed for individual accounts with/ without nominee/ survivorship clause, as applicable.

9.2 Modes for Certification of 'proof of death' document issued outside India

In cases involving death of a customer outside India, 'proof of death' document is issued by an authority outside the country. In such cases, bank shall accept the original certified copy of the document issued for 'proof of death', certified in the country of its issuance in any one of the following modes:

- i. authorised officials of overseas branches of Scheduled Commercial Banks registered in India; or
- ii. branches of overseas banks with whom Indian banks have correspondent banking relationships; or
- iii. a Court Magistrate or Judge or Notary Public; or
- iv. consularised by Indian Embassy/ Consulate General in the country of issuance; or
- v. apostilled.

9.3 Customer Awareness and Publicity

Bank shall continue to spread awareness among its customers about the benefits of the nomination facility/ survivorship clause and give wide publicity to these facilities along with the procedure for settlement of claims.

10. Approving Authority for settlement of claims - Applicable for Deposits/ locker without nominations / Survivors

Keeping in view the objective of adhering to the prescribed time norms, the following officials are authorised to accord approval for settling the claims on the accounts, deposits, and /or safe deposit

lockers of the deceased depositors who have not registered any nomination in their account. The claims shall be approved jointly by any two designated officials of the Bank as under:-

Name	Designation
Mr. Surinderpal Singh	National Sales Head- Branch Banking
Mr. Gautam Chawla	SVP-National Head Retail Branch Banking
Mr. Ponnuraj P.	SVP -Head Products & Distribution
Ms. Uma Sundar	VP- Head Branch Operations and Process Control
Ms. Kawalpreet Suri	VP- Head Channels

Annexure-1

In Summary - Settlement of Claims in Various types of Operational instructions

Deposits with Nomination

1. With Nomination									
S. No	Nature of Account	Single depositor	Joint A/c (operated jointly)		Joint A/c (Either or Survivor)		Joint A/c (Former/Latter or Survivor)		Joint Account (Anyone or Survivor/s)
A	Savings A/c and Current A/c	On death of depositor - Nominee	I	On death of one or more depositor/s - Legal Heirs of deceased + Surviving depositors	I	On death of one depositor - Survivor	I	One death of former / Latter - Survivor	I On death of one or more depositors - Survivor/s
			II	On death of all depositors - Nominee	II	On death of both depositors - Nominee	II	On death of both depositors - Nominee	II On death of all depositors - Nominee
B	Term Deposit Account	- As above - (on maturity of deposit)	- I & II as above - (on maturity of deposit)		- I & II as above - (on maturity of deposit)		- I & II as above - (on maturity of deposit)		- I & II as above - (on maturity of deposit)
C	Premature withdrawal of FD	- As above - (As per terms of contract)	- I & II as above - (As per terms of contract)		- I & II as above - (As per terms of contract)		- I & II as above - (As per terms of contract)		- I & II as above - (As per terms of contract)

Account in the Name of	Operational Instructions	Nominee	Situation	What is to be done
A	Self	X	X dies	A can change the nomination
A	Self	X	A dies	X will receive the outstanding
A, B	Either or Survivor	X	A dies	Balance outstanding will be payable to B.
A, B	Either or Survivor	X	B dies	Balance outstanding will be payable to A.
A,B	Either or Survivor	X	A & B dies	X will receive the outstanding
A,B	Jointly	X	A dies	Payable to B and legal heirs of A jointly
A,B	Jointly	X	B dies	Payable to A and legal heirs of B jointly
A,B	Jointly	X	A & B dies	Payable to X

Without Nomination

2. Without Nomination									
S. No	Nature of Account	Single depositor	Joint A/c (operated jointly)		Joint A/c (Either or Survivor)		Joint A/c (Former/ Latter or Survivor)		Joint Account (Anyone or Survivor/s)
A	Savings A/c and Current A/c	On death of depositor - Legal Heirs of person mandated by them	I	On death of one depositor - Legal Heirs of deceased + Survivor/s	I	On death of either depositor - Survivor	I	On death of either depositor - Survivor	I On death of one or more depositor/s - Legal Heirs of deceased + Survivor/s
			II	On death of all depositors - Legal Heirs of all the depositors	II	On death of both depositors - Legal Heirs of both the depositors	II	On death of both the depositors - Legal Heirs both the depositors	II On death of all depositors - Legal Heirs of all the depositors
B	Term Deposit Account	- As above - On maturity of deposit	- I & II as above - On maturity of deposit		- I & II as above - On maturity of deposit		- I & II as above - On maturity of deposit		- I & II as above - On maturity of deposit
C	Premature withdrawal of FD	- As above - As per terms of contract	- I & II as above - As per terms of contract		- I & II as above - As per terms of contract		- I & II as above - As per terms of contract		- I & II as above - As per terms of contract

Account in the Name of	Operational Instructions	Situation	What is to be done
A	Self	A dies	Outstanding will be payable to the legal heirs or any one of them mandated by all of the legal heirs
A, B	Either or Survivor	A dies	Outstanding will be payable to B
A,B	Either or Survivor	B dies	Outstanding will be payable to A
A,B	Either or Survivor	A & B dies	Jointly payable to legal heirs of A & B (or any of them mandated by all the legal heirs)
A,B	Jointly	A dies	Jointly payable to B and legal heirs of the A (or any one of them mandated by all the legal heirs).
A,B	Jointly	B dies	Jointly payable to A and legal heirs of the B (or any one of them mandated by all the legal heirs)
A,B	Jointly	A & B dies	Jointly payable to legal heirs of A & B (or any of them mandated by all the legal heirs)

Lockers with Nomination

Locker in the Name of	Operational Instructions	Nominee	Situation	What is to be done
A	Self	X	X dies	A can change the nomination
A	Self	X	A dies	X will be given access to the locker and liberty to remove contents
A,B	Jointly	X	A dies	B and X will be given access to the locker and liberty to remove contents jointly.
A,B	Jointly	X	B dies	A and X will be given access to the locker and liberty to remove contents jointly
A, B	Jointly	X	A & B dies	X will be given access to the locker and liberty to remove contents.
A,B	Jointly	X & Y	A dies	B along with X and Y will be given access to the locker and liberty to remove contents jointly
A, B	Jointly	X & Y	B dies	A along with X and Y will be given access to the locker and liberty to remove contents jointly.
A,B	Jointly	X & Y	A & B dies	X and Y jointly will be given access to the locker and liberty to remove the contents

Lockers without Nomination

Locker in the Name of	Operational Instructions	Situation	What is to be done
A	Self	A dies	Legal heirs of A or any of them mandated by any of them.
A, B	Either or Survivor	A dies	B will be given access to the locker and liberty to remove the contents.
A, B	Either or Survivor	B dies	A will be given access to the locker and liberty to remove the contents.
A,B	Either or Survivor	A & B dies	Legal heirs of A and B (or any one of them mandated by all legal heirs) will be given access to the locker and liberty to remove the contents.

A,B	Jointly	A dies	B and legal heirs of A (or any of them mandated by all legal heirs) will be given access to locker and liberty to remove the contents jointly.
A,B	Jointly	B dies	A and legal heirs of B (or any one of them mandate by all legal heirs) will be given access to locker and liberty to remove the contents jointly
A, B	Jointly	A & B dies	Legal heirs of A & B (or any of them mandated by all legal heirs) will be given access to locker and liberty to remove the contents.

Checklist -Settlement of Claims in Deposit Accounts of Deceased Depositor

Sr. No.	Particulars	Description	Annexures
1	Accounts with Nominee/Survivorship Clause	Claim Form	Annex I-A
		Death certificate	
		OVD	
2	Accounts without Nominee/Survivorship Clause		
a	Claims up to Threshold Limit of ₹15 lakh	Claim Form	Annex I-B
		Death certificate	
		OVD	
		Indemnity Bond signed by claimant(s)	Annex I-C
		Disclaimer/No Objection Letter	Annex I-D
		Legal Heir Certificate by a competent authority OR Declaration (third Party)	Annex I-E
b	Claims Above Threshold Limit of ₹15 lakh	(A) Succession Certificate	
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		OR	
		(B)Legal Heir Certificate by a competent authority	
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		Indemnity Bond signed by claimant(s) & Surety	Annex I-C
		Disclaimer/No Objection Letter	Annex I-D
		OR	
		(C)Affidavit sworn before a Notary Public/ Judge/ Judicial Magistrate	Annex I-E
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		Indemnity Bond signed by claimant(s) & Surety	Annex I-C
		Disclaimer/No Objection Letter	Annex I-D
c		(A) Probate of Will/ Letter of Administration	

	Claims involving 'Will' without any dispute		
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		(B) Will (Without Probate) up to an amount of Rs. 15 Lakh	
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		Indemnity Bond	Annex I-C
		Disclaimer/No Objection Letter	Annex I-D
d	Cases involving contesting claims/ dispute	Probate of Will OR Letter of Administration OR Succession Certificate Or Court order/ decree, as applicable.	
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		Order from a Court restraining the bank then subsequent Court order to be considered	

Checklist- Settlement of Claims in Safe Deposit Locker and Articles in Safe Custody by Deceased Customer

Sr. No.	Particulars	Description	Annexures
1	Claims with Nominee(s)/Survivorship(s)	Claim Form	Annex I-A
		Death certificate	
		OVD	
		Inventory Form	Annex I-F
2	Cases without Nominee/ Survivorship clause		
a	Claims falling under the simplified procedure	Claim Form	Annex I-B
		Death certificate	
		OVD	
		Disclaimer/No Objection Letter	Annex I-D
		Legal Heir Certificate by a competent authority OR Declaration (third Party)	Annex I-E
		Legal Heir Certificate by a competent authority OR Declaration (third Party)	Annex I-E
		Inventory Form	Annex I-F
3	Settlement of Claims not falling under the Simplified Procedure		
a	Claims involving 'Will' without any dispute	(A) Probate of Will/ Letter of Administration	
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		(B) Will (Without Probate Will)	
		Claim Form	Annex I-B
		Death certificate	
		OVD	
		Indemnity Bond	Annex I-C
		Disclaimer/No Objection Letter	Annex I-D
		Inventory Form	Annex I-F
b	Cases involving contesting claims/ dispute	Probate of Will OR Letter of Administration OR Succession Certificate Or Court order/ decree, as applicable.	
		Claim Form	Annex I-B

		Death certificate	
		OVD	
		Order from a Court restraining the bank then subsequent Court order to be considered	
		Inventory Form	Annex I-F